



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 9674

APR 13 1987

1. General Battery Corporation, Reading, Pennsylvania, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of battery plates containing lead peroxide for transportatin in commerce subject to the limitations and special requirements specified herein. This exemption authorizes battery plates containing lead peroxide to be shipped when packaged in a pallet-shrink wrap configuration, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from General Battery Corporation dated September 16, 1986, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Battery plates containing lead peroxide, classed as oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Lead peroxide

5. REGULATION AFFECTED. 49 CFR 173.154

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as shown in Attachment 2 to the application for exemption. This consists of sheets of plywood or Aspenite separating layers of battery plates all enclosed in three layers of shrink-wrap or polyethylene film. Ropes of twisted film are wrapped around the corners of the unit for additional security. The height of the load above the pallet may not exceed 36" and the gross weight may not exceed 3000 pounds.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. November 30, 1988.

Issued at Washington, D.C.:



Alan I Roberts
Director
Office of Hazardous Materials
Transportation

APR 13 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U. S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA